

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahira Delaine	Team: Team # 6	CCRB Case #: 200402285	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/10/2004 6:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/10/2005	Precinct: 47
Date/Time CV Reported Fri, 03/12/2004 1:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/12/2004 1:33 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	21191	926015	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Abuse: PO Robert Rodriguez entered and searched location.	A . Complainant Uncooperative
B . POM Robert Rodriguez	Force: PO Robert Rodriguez used physical force against § 87(2)(b) Henrigues.	B . Complainant Uncooperative
C . POM Robert Rodriguez	Abuse: PO Robert Rodriguez seized § 87(2)(b) s	C . Complainant Uncooperative

Synopsis

§ 87(2)(b) filed her complaint to CCRB via telephone on March 12, 2004. On March 10, 2004, § 87(2)(b) was involved in a verbal dispute with her tenant, § 87(2)(b) and her tenant both called 911 for police assistance. Three patrol cars with six uniformed officers responded to the residence. § 87(2)(b)'s tenant told the officers that § 87(2)(b) threatened her with a knife. Officer Rodriguez handcuffed and arrested § 87(2)(b). § 87(2)(b) was placed in an RMP. While § 87(2)(b) was sitting in the RMP, she observed Officer Rodriguez push her § 87(2)(b)-old daughter, § 87(2)(b), enter her apartment and exit with a knife. She later learned from her daughter that Officer Rodriguez never asked permission to enter the apartment. § 87(2)(b) stated that she observed Officer Rodriguez's name and badge number at the time of the incident.

The investigator contacted § 87(2)(b) on March 18, 2004 and March 25, 2004 and attempted to schedule an appointment. Both times § 87(2)(b) told the investigator that she would be in contact to schedule an appointment. Having not heard from § 87(2)(b) on March 31, 2004, the investigator sent her a contact letter. On April 14, 2004 and April 20, 2004, the investigator attempted to contact § 87(2)(b). On these dates, § 87(2)(b) was unavailable. The investigator left a message and subsequently sent a final contact letter to § 87(2)(b). On April 22, 2004, § 87(2)(b) contacted the investigator and scheduled an appointment for April 28, 2004 at 3:30 PM. On April 28, 2004, § 87(2)(b) left the investigator a message thirty minutes before her scheduled appointment, stating that she had lost the address to the CCRB and that she needed driving directions. The investigator contacted § 87(2)(b) and it was determined that because of time constraints the appointment would be rescheduled. On May 4, 2004, the investigator attempted to contact § 87(2)(b). § 87(2)(b) was unavailable. The investigator left a message. On May 6, 2004, having not heard from § 87(2)(b) the investigator sent a contact letter. The victim, § 87(2)(b)'s daughter § 87(2)(b) is § 87(2)(b) old and for this reason, she was not contacted. Given that § 87(2)(b) has not responded to the investigator's numerous contact attempts, it is recommended that § 87(2)(b)'s allegations of Force and Abuse of Authority be closed as complainant uncooperative.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: